

Table of Statutes referred to in this Act

Short Title	Chapter
Lands Valuation (Scotland) Act 1854	17 & 18 Vict. c. 91.
Lands Valuation (Scotland) Act 1857	20 & 21 Vict. c. 58.
Valuation of Lands (Scotland) Amendment Act 1879	42 & 43 Vict. c. 42.
Local Government (Scotland) Act 1929	19 & 20 Geo. 5. c. 25.
Rural Water Supplies and Sewerage Act 1944	7 & 8 Geo. 6. c. 26.
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Local Government (Financial Provisions) (Scotland) Act 1954.	2 & 3 Eliz. 2. c. 13.
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Local Government and Miscellaneous Financial Provisions (Scotland) Act 1958.	6 & 7 Eliz. 2. c. 64.
Local Government (Financial Provisions, etc.) (Scotland) Act 1962.	10 & 11 Eliz. 2. c. 9.
Housing (Scotland) Act 1962	10 & 11 Eliz. 2. c. 28.
Transport Act 1962	10 & 11 Eliz. 2. c. 46.

1963 CHAPTER 13

An Act to authorise the Minister of Health to make regulations as to the conduct of nursing homes; and to repeal section 192 of the Public Health Act 1936 and section 246 of the Public Health (London) Act 1936.

[15th May 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) The Minister of Health may make regulations as to the conduct of nursing homes within the meaning of Part VI of the Public Health Act 1936 and Part XI of the Public Health (London) Act 1936, and such regulations may in particular—
- (a) make provision as to the facilities and services to be provided in such homes;
- Regulations
for nursing
homes.
26 Geo. 5 & 1
Edw. 8. c. 49.
26 Geo. 5 & 1
Edw. 8. c. 50.

- (b) empower the local authority responsible for the registration of any such home under the said enactments to limit the number of persons, or persons of any description, who may be received into the home, and enable registration of any such home to be made subject to the condition that persons shall not be received therein in excess of the number fixed for the home in accordance with the regulations ;
- (c) provide that a contravention of, or failure to comply with, any specified provision of the regulations shall be an offence against the regulations ; and
- (d) empower local authorities responsible for the registration of any such homes to institute proceedings against any person for such an offence.

(2) Any person guilty of an offence against regulations under this section shall be liable on summary conviction, in the case of a first offence, to a fine not exceeding five pounds, and, in the case of a second or subsequent offence, to a fine not exceeding twenty pounds ; and without prejudice to the foregoing provision, the power to cancel the registration of a person in respect of a nursing home under section 188 of the Public Health Act 1936 and under section 242 of the Public Health (London) Act 1936 shall include power to cancel the registration of any person on the ground that he has been convicted of such an offence.

(3) Where an offence against regulations under this section which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(4) The power to make regulations under this section shall be exercisable by statutory instrument, and any statutory instrument made by virtue of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) Nothing in this section shall affect mental nursing homes within the meaning of the Mental Health Act 1959, or nursing homes exempted under section 193 of the Public Health Act 1936 or section 247 of the Public Health (London) Act 1936 (Christian Science nursing homes).

7 & 8 Eliz. 2. c.
72.

Repeal of
exemptions
for voluntary
institutions.

2. Section 192 of the Public Health Act 1936 and section 246 of the Public Health (London) Act 1936 (which enable certain institutions not carried on for profit to be exempted from the

provisions of those Acts relating to nursing homes) shall cease to have effect on the expiration of the period of twelve months beginning with the passing of this Act.

3.—(1) This Act may be cited as the Nursing Homes Act 1963. Short title
and extent.

(2) This Act does not extend to Scotland or Northern Ireland.

1963 CHAPTER 14

An Act to make further provision for the apportionment and redemption of corn rents and other payments wholly or partly payable in lieu of tithes and for the extinguishment thereof in certain cases; to transfer to the Treasury the functions of the Minister of Agriculture, Fisheries and Food under subsection (2) of section 30 of the Tithe Act 1936; and for purposes connected with the matters aforesaid. [15th May 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Commissioners of Inland Revenue (hereinafter referred to as “the Commissioners”) may by a scheme made by them make provision for the apportionment and redemption of corn rents and other payments for which provision was made by section 30 (1) of the Tithe Act 1936; and a scheme under this section (hereinafter referred to as “a scheme”) shall have effect in lieu of the said section 30 (1). Power to
make scheme
for apportion-
ment,
redemption,
etc., of corn
rents.

26 Geo. 5 &
1 Edw. 8. c. 43.

(2) A scheme may apply to such additional payments, being payments which by virtue of an enactment or by custom are charged on or otherwise payable in relation to land wholly or partly in lieu of tithes, as the Commissioners think fit.

(3) As respects payments such as are mentioned in subsection (1) or (2) of this section (hereinafter referred to as “rents”) a scheme may include provision for the extinguishment thereof in cases where—

- (a) a rent has been redeemed, or
- (b) a person is entitled in the same capacity both to the rent and to the land in respect of which it is payable, or
- (c) all persons having an interest either in the rent or the land in respect of which it is payable agree to its extinguishment.